

Applicable Law Acts

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User Query :

I am involved in a court case and have WhatsApp messages, emails and screenshots that support my version of events. The other party says that screenshots can be edited and should not be relied upon. The original messages are still on my phone and the emails remain in my account. What legal provisions govern whether these electronic records can be used as evidence?

Job Id. : qwen3-30b/Scenario 7/Combined Act

Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 4 — Legal recognition of electronic records

Provides general legal recognition to electronic records.

Section 5 — Legal recognition of electronic signatures

Relevant only if an electronic signature is in issue.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The IT Act provides general legal recognition to electronic records/signatures, but the rules governing proof/admissibility in court are principally in the BSA.

✓ STRENGTHS & RIGHTS

1 The records are electronic and originals remain available.

✗ RISKS & OBLIGATIONS

1 Do not import the repealed Evidence Act numbering into the IT Act; use the current BSA electronic-record provisions.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. For evidentiary admissibility, rely primarily on BSA sections 61-63.

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The question is about evidentiary use of messages/emails, not a substantive BNS offence.

✓ STRENGTHS & RIGHTS

- 1 Keeps offence law separate from evidence law.

✗ RISKS & OBLIGATIONS

- 1 A substantive BNS provision would depend on the underlying dispute, which is not described.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Use BSA for admissibility/proof.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023**APPLICABLE SECTIONS****Section 61 — Electronic or digital record**

Electronic/digital records have the same legal effect subject to **section 63**.

Section 62 — Special provisions as to evidence relating to electronic record

Contents may be proved according to **section 63**.

Section 63 — Special provisions relating to electronic records

Central to proving WhatsApp messages, emails and screenshots.

Section 90 — Presumption as to electronic messages

May assist with emails; the presumption concerns correspondence with what was fed for transmission, not the identity of the sender.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 Sections 61-63 are the core provisions. The fact that the original messages remain on the phone/email account is useful for authentication and comparison. **Section 90** has a limited presumption and does not establish who actually sent an electronic message.

✓ STRENGTHS & RIGHTS

- 1 **Original source records are still available, which is stronger than relying only on detached screenshots.**

✗ RISKS & OBLIGATIONS

- 1 **Screenshots can be challenged; authenticity, integrity and **section 63** requirements still matter.**

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve original accounts/devices, message headers and metadata.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The question concerns evidence in litigation, not personal-data processing obligations.

✓ STRENGTHS & RIGHTS

- 1 **Avoids conflating privacy law with admissibility.**

X RISKS & OBLIGATIONS

1

Separate disclosure/processing facts could raise DPDP issues but are not stated.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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